

Court No. - 3

Case :- WRIT - C No. - 20584 of 2021

Petitioner :- Riyazuddin

Respondent :- Uttar Pradesh Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Brij Raj, Ramsagar Yadav

Counsel for Respondent :- Krishna Agarwal, Udit Chandra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

1. Heard Sri Brij Raj, learned counsel for the petitioner; Sri Udit Chandra, learned counsel appearing for the Distribution Company; Sri Suresh Kumar Maurya, Advocate, holding brief of Sri Krishna Agarwal, learned counsel appearing for the Power Corporation and learned Standing Counsel for the State-respondents.

2. Challenge has been raised to the order dated 15.02.2021 passed by the Executive Engineer whereby a demand of Rs. 4,15,728/- towards electricity dues and Rs. 1,00,000/- towards compounding fee has been raised against the petitioner.

3. Submission of learned counsel for the petitioner is that the said order does not fall within the description of the final assessment order inasmuch as it was not preceded by the provisional assessment order. Unless the final assessment order is passed strictly in accordance with the U.P. Electricity Supply Code, 2005, the same cannot be relied to create a demand.

4. The above submission made, cannot be accepted as in the present case, earlier a recovery notice dated 26.12.2019 had been issued against the petitioner. He challenged the same by means of Writ - C No. 25667 of 2020, which was disposed of, vide order dated 18.01.2021 with the following observations:

"Taking into consideration the aforesaid facts and circumstances

but without entering into the merits of the case, the writ petition is disposed of with the liberty to the petitioner to file a fresh representation before respondent No.3 within a period of two weeks ventilating all his grievances, which shall be considered and decided by respondent No.3 within four weeks thereafter in accordance with law after affording opportunity of hearing to the petitioner.

For a period of six weeks or till the representation filed by the petitioner before the respondent no.3 is decided, whichever is earlier, no coercive action shall be taken against the petitioner pursuant to the impugned notice dated 26.12.2019 issued by the respondent no.3 (Annexure-4 to the writ petition).

It is made clear that if the petitioner fails to file the representation as indicated above, he shall not be entitled to get the benefit of this order."

5. The aforesaid order has attained finality. Therefore, all grievances of the petitioner arising from issuance of demand for electricity dues had to be ventilated accordingly. They are found to have been addressed by means of the order dated 18.01.2021 passed on the writ petition filed by the present petitioner himself.

6. The impugned order dated 15.02.2021 passed by the Executive Engineer has been passed solely in compliance of the aforesaid direction issued by this Court. Accordingly, it fully describes itself as a final assessment order made against the petitioner.

7. In view of the above, present writ petition lacks merit and is accordingly **dismissed**, leaving it open to the petitioner to pursue his remedy of appeal against that order.

Order Date :- 26.8.2021
Abhilash